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Case Number: 22STCV09232 Hearing Date: July 2, 2026 Dept: 11

Preliminary Approval of Class Action

Settlement

Department SSC-11

Brinan Weeks v. Interactive Life Forms, LLC

Case

No.: 22STCV03531

Hearing: July 2, 2026

TENTATIVE RULING

CONTINUE preliminary approval for the parties to address the checklist items.

BACKGROUND

This

is a consumer class action. On January 28, 2022, Plaintiff Brinan Weeks, ("Plaintiff" or "Weeks"), individually and on behalf of all others similarly situated, commenced the instant action against Defendant Interactive Life Forms, LLC ("Interactive") and Does 1 through 100 asserting claims for: (1) negligent misrepresentation (Civil Code §§ 1709, 1710, & 1572), (2) injunctive relief pursuant to the Consumer Legal Remedies Act (Civil Code § 1750, et seq.), (3) violation of the False Advertising Law (Business and Professions Code § 17500, et seq.), (4) breach of express warranty (Commercial Code § 2314), (5) breach of implied warranty (Commercial Code § 2314), and (6)

violation of the Unfair Competition Law (Business and Professions Code § 17200, et seq.). According to the Complaint, Interactive manufactures a variety of sexual products for men, called sleeves, under the “Fleshlight” brand. (Complaint, ¶1.) Plaintiff alleges that, in its advertising, Interactive emphasizes that its Fleshlight products, particularly the “Stamina Training Unit” (“STU”), are designed, in part, to improve and enhance the user's sexual performance. (Id. at ¶¶2-5.) Plaintiff alleges that he relied on Defendant's representations and purchased the STU, but after several months of use did not experience any improvement in his sexual performance. (Id. at ¶¶6-7.)

On April 25, 2022, the Court granted Plaintiff leave to file an amended complaint pursuant to stipulation of the parties. On April 28, 2022, Plaintiff filed a First Amended Class Action Complaint (“FAC”).

On July 22, 2022, the Court approved the parties' Stipulation and Protective Order.

On July 26, 2022, the Court denied Defendant's Motion for Order Compelling Arbitration and Staying Action. Defendant filed an appeal of the Court's July 26, 2022, ruling. On November 8, 2022, the Court stayed the action pending the appeal, pursuant to the stipulation of the parties. On March 25, 2024, the Court of Appeal affirmed the denial of Defendant's Motion. On April 17, 2024, Plaintiff's Motion to Lift the Stay was granted.

On August 23, 2024, the Court denied Defendant's Motion for Protective Order.

On October 7, 2024, Defendant filed an Answer to the FAC.

On July 23, 2025, the parties participated in a mediation presided over by the Honorable Carl J. West (Retired) and reached a settlement. (Russell Decl., ¶4.) A fully executed copy of the Class Action Settlement (“Settlement Agreement” or “Agreement”) is attached to counsel Russell's declaration as Exhibit A and a redlined version of the LASC Model Agreement is attached as Exhibit B. (Id. at ¶4, Exs. A-B.)

Now before the Court is the Motion for Preliminary

Approval of Class Action Settlement ("MPA"), filed on October 3, 2025.

SETTLEMENT CLASS DEFINITION

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"Class" means all consumers, excluding Interactive Life Forms, LLC and its agents (collectively "ILF"), who, between January 28, 2018 and the date of Preliminary Approval, either: (a) while residing in California purchased a Fleshlight 'Stamina Training Unit' sleeve manufactured by ILF; or (b) received at a California address delivery of a Fleshlight 'Stamina Training Unit' sleeve manufactured by ILF during the Class Period. (¶1.4)

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"Class Period" means the period from January 28, 2018 to the date of Preliminary Approval. (¶1.10)

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"Class Member" or "Settlement Class Member" means a member of the Class, as either a Participating Class Member or Non-Participating Class Member. (¶1.8)

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"Participating Class Member" means a Class Member who does not submit a valid and timely Request for Exclusion from the Settlement. (¶1.26)

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"Class Counsel" means L. David Russell, Russell Law, PC and Omar G. Qureshi and Will Horowitz, Qureshi Law PC. (¶1.5)

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The fee-split between Russell Law, PC and Qureshi Law, of 50% to each, was approved in writing by Plaintiff. (Russell Decl., ¶27.)

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Based on a review of its records to date, ILF estimates there are in the range of between 36,000 and 42,000 Class Members. (¶¶4.1, 9)

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The Parties agree that class certification and representative treatment is for purposes of this Settlement only. If, for any reason the Court does grant Preliminary Approval, Final Approval or enter Judgment, ILF reserves the right to contest certification of any class for any reasons, and ILF reserves all available defenses to the claims in the Action, and Plaintiff reserves the right to move for class certification on any grounds available and to contest ILF's defenses. (§13.1) [Should state "If, for any reason the Court does not grant Preliminary Approval..."]

TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

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The Gross Settlement Amount ("GSA") is \$425,000, non-reversionary. (§1.21, 3.1)

o According to §3.1, Defendant has no obligation to pay the GSA or any payroll taxes prior to the funding deadline. [Remove the reference to payroll taxes.]

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The Net Settlement Amount ("Net") (\$192,847.50) is the GSA minus the following:

o Up to \$141,652.50 (33.33% of GSA) for attorney fees (§3.2.2);

o Up to \$35,000 for litigation costs (Ibid.);

o Up to \$10,000 for a Class Representative Service Payment (§3.2.1);

§ Plaintiff's

Class Representative payment should not exceed \$7,500, absent substantial justification. Provide justification for

a payment of \$10,000.

o Up to \$45,500 for settlement
administration costs (§3.2.3).

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Settlement

Relief:

o Monetary Relief: Settlement Class Members who timely submit
Valid Claims shall receive Thirty Dollars (\$30.00) per Valid Claim, subject to
a pro-rata reduction if the Net Settlement Fund is insufficient to satisfy all
Valid Claims at the \$30 level ("Individual Class Payment"). (§1.22, 3.2.4)

§ "Valid Claim" means a timely and properly completed claim form that is signed by a
Participating Class Member under penalty of perjury and otherwise satisfies the
requirements of this Agreement. (§1.34)

· What

is the deadline for submitting claim forms?

· What

happens if the claim form is not properly completed? Will the Class Member have an opportunity to
make a correction?

o Nonmonetary Relief/Injunctive Relief: No later than 10 days after the effective
date, ILF shall do the following:

§ (1) ILF shall revise its STU product
packaging to include the statement: "Benefits you may receive from use of the
Stamina Training Unit may vary by individual and are not guaranteed. This
product is not intended to diagnose, treat, cure, or prevent any disease." For
six (6) months after the Court's Effective Date, ILF shall affix this
"Statement" via sticker on existing inventory.
(§5.1.1)

§ (2) Within ten (10) calendar days of the
Effective Date: (i) ILF shall include the Statement on all of its web pages
advertising the STU and (ii) ILF shall remove from its advertising the
following statements: (A) "The STU amazingly replicates the sensations of

sexual relations and forces you to be better in bed” and (B) “The STU was engineered ... to turn ordinary masturbation into an intensely pleasurable training session.” (¶5.1.2)

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Claim

Requirement:

o Each Participating Class Member who submits to the Administrator a Valid Claim shall be entitled to one Individual Class Payment as provided herein in Section 3.2.4. To qualify as a "Valid Claim," the Class Member must (a) complete a claim form disclosing their legal name, email address and physical mailing address; (b) physically or electronically sign the claim form declaring under penalty of perjury that they purchased a Fleshlight Stamina Training Unit product during the Class Period; and (c) return the executed claim form to the Administrator by email or United States Mail. No Participating Class Member may submit more than one Valid Claim. (¶8.6)

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“Plaintiff

and ILF agreed that a claims-made settlement structure is particularly appropriate in this case due to the sensitive nature of the product at issue—a sex toy—and the strong privacy interests of class members. Directly mailing checks or settlement payments without an affirmative claim could inadvertently disclose a class member's purchase of a sex toy to family members, housemates, or others, potentially causing embarrassment or invading their privacy. Requiring class members to submit a claim ensures that only those who affirmatively wish to receive compensation—and are comfortable doing so—will receive a payment. The mediator endorsed and guided the parties to this approach. This approach respects the private nature of the purchase and avoids any unintended disclosures. Moreover, a claims process is necessary to verify eligibility and ensure accurate distribution, particularly given the passage of time and the likelihood that some class members may no longer be reachable through prior contact information. Here, the claims made structure balances the need to compensate affected consumers with the need to protect their confidentiality and autonomy, while fully preserving their due process rights through adequate notice and an opportunity to opt out.” (Russell Decl., ¶¶16-17.)

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“The claims

process is not so burdensome that relief would be inaccessible to class members. Most Class members will receive claim forms via email that they simply need to return to the Administrator to submit a claim. Notice will also be provided in a newspaper of general circulation, which will provide the email address of the Administrator for claim submission. See Settlement Agreement § 8.4. Additionally, the notice is clear and concise and the Administrator will set up a dedicated settlement website that is easy to navigate.” (Russell Decl., ¶18.)

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According

to Plaintiff’s counsel, “[a]t this time, it is not feasible to reliably estimate the anticipated claims rate for the Settlement. According to ILF, ILF does not maintain individual transactional records for brick and mortar purchasers of the STU and is not provided individual contact information for customers who purchased the product via third party online sellers such as Amazon. Moreover, according to ILF, its contact information for online purchasers is several years old in some cases. Additionally, given the highly sensitive nature of the product at issue, some class members may choose not to participate in the claims process in order to protect their privacy, even if they are otherwise eligible for relief. These factors, combined with the lack of historical benchmark data for similar settlements involving comparable products and privacy concerns, make it impracticable to provide a meaningful or accurate estimate of the claims rate. The Settlement Administrator will provide data on actual claims submitted once the claims period concludes, and the parties will update the Court at that time with any relevant metrics.” (Russell Decl., ¶20.)

o Indicate

what actions class counsel will take to encourage claim submission.

o Submit

a copy of the proposed Claim Form for the Court’s review. Will the Claim Form be emailed along with the Class Notice? Will it be published along with the Class Notice?

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Funding: ILF shall fully fund the Gross Settlement

Amount by transmitting the funds to the Administrator no later than 14 days after the Effective Date. (¶4.3)

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“Effective

Date” means the date by when both of the following have occurred: (a) the Court enters a Judgment on its Order Granting Final Approval of the Settlement; and (b) the Judgment is final. The Judgment is final as of the latest of the following occurrences: (a) if no Participating Class Member objects to the Settlement, the day the Court enters Judgment; (b) if one or more Participating Class Members objects to the Settlement, the day after the deadline for filing a notice of appeal from the Judgment; or if a timely appeal from the Judgment is filed, the day after the appellate court affirms the Judgment and issues a remittitur. (§1.17)

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Disbursement: Within 14 days after ILF funds the Gross Settlement Amount, the Administrator will mail checks in payment of all Valid Claims, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, the Class Representative Service Payment and the Cy Pres Recipient payment, if any. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, the Class Representative Service Payment and any Cy Pres Recipient payment shall not precede disbursement of Individual Class Payments. (§4.4)

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The

Administrator will issue checks in payment of the Valid Claims and send them to the Class Members via First Class U.S. Mail, postage prepaid. (§4.4.1)

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The

Administrator must conduct a Class Member Address Search for all other Class Members whose checks are returned undelivered without a United States Postal Service (“USPS”) forwarding address. Within 7 days of receiving a returned check the Administrator must re-mail checks to the USPS forwarding address provided or to an address ascertained through the Class Member Address Search. The Administrator need not take further steps to deliver checks to Class Members whose re-mailed checks are returned as undelivered. The Administrator shall promptly send a replacement check to any Class Member whose original

check was lost or misplaced, requested by the Class Member prior to the void date. (¶4.4.2)

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What funds are being distributed to the Cy Pres Recipient if uncashed checks are voided 180 days after the date of mailing?

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Residual

Funds: The face of each check shall prominently state the date (not less than 180 days after the date of mailing) when the check will be voided. The Administrator will cancel all checks not cashed by the void date.

(¶4.4.1)

Any

residual funds, including funds from uncashed checks after the void date shall, subject to Court approval, be distributed the Court approved Cy Pres Recipient. No portion of the Gross Settlement Fund or Net Settlement Fund shall revert to ILF. (¶¶3.2.4, 4.4.3) "Cy Pres Recipient" means Public Counsel, 610

South Ardmore Avenue, Los Angeles, California 90005 or such other nonprofit organization or foundation approved by the Court consistent with Code of Civil Procedure section 384, subdivision (b).

(¶1.14)

o Defendant's counsel, Daniel A. Johnson, asserts that he is "unaware of any actual or potential conflicts of interest with any of the actual or potential cy pres recipients in this matter including, without limitation, Public Counsel."

(Declaration of Daniel A. Johnson, ¶2.)

o Why

aren't residual funds distributed to Class Members who submit a Valid Claim? For example, if the number of Valid Claims is such that the Net Settlement Amount divided by the number of Valid Claims is greater than \$30, why don't claimants receive more than \$30, given that they paid \$69.95 for the STU?

o Detail the steps that will be taken to

ensure compliance with Code of Civil Procedure section 384, which requires that the Court re-open judgments following the final distribution of funds to include the cy pres in the judgment and to include the unclaimed amount, plus an unspecified amount of interest. Such information should be actively contemplated/provided for within the current terms of the settlement.

o Explain

why the cy pres distribution fulfills the purposes of the lawsuit or is otherwise appropriate.

o Provide declarations from Plaintiff,

Plaintiff's counsel, and Defendant disclosing interest or involvement (or lack thereof) in the governance or work of the cy pres recipient. Alternatively, direct all uncashed checks to the State Controller's Office.

Response Deadline: "Response Deadline" means 45 days after the Administrator emails and publishes Notice to Class Members, and shall be the last date on which Class Members may: (a) email, or mail Requests for Exclusion from the Settlement, or (b) email, or mail their Objection to the Settlement. Class Members to whom Notice Packets are resent after having been returned undeliverable to the Administrator shall have an additional 14 calendar days beyond the Response Deadline has expired.

(¶1.33)

o Requests for

Exclusion: Class Members who wish to exclude themselves (opt-out of) the Class Settlement must send the Administrator, by email, or mail, a signed written Request for Exclusion not later than 60 days after the Administrator emails and first publishes the Class Notice (plus an additional 14 days for Class Members whose Class Notice is re-emailed). A Request for Exclusion is a letter from a Class Member or his/her/their representative that reasonably communicates the Class Member's election to be excluded from the Settlement and includes the Class Member's name, address and email address or telephone number. To be valid, a Request for Exclusion must be timely emailed, or postmarked by the Response Deadline. (¶8.5.1)

o Objections: Participating Class Members may send written objections to the Administrator, by email or mail. In the alternative, Participating Class Members may appear in Court (or hire an attorney to appear in Court) to present oral objections at the Final Approval Hearing. A

Participating Class Member who elects to send a written objection to the Administrator must do so not later than 60 days after the Administrator's mailing of the Class Notice (plus an additional 14 days for Class Members whose Class Notice was re-mailed). (§8.7.2)

o If the number of valid Requests for Exclusion identified in the Exclusion List exceeds 5% of the total of all Class Members, ILF may, but is not obligated, elect to withdraw from the Settlement. (§10)

o Ensure that the Response Deadline is consistent throughout the Settlement Agreement and moving papers. Currently, it is stated as 45 days in §1.33 of the Agreement and 60 days in §§8.4.4, 8.5.1, 8.7.2 of the Agreement, §3.5 of the Notice, and §12 of the Proposed Order.

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The settlement administrator will be Phoenix Class Action Administration Solutions. (§§1.2, 8.1; Russell Decl., §30, Ex. C – Phoenix Administration Bid.)

o Provide the qualifications and experience of the Administrator, including evidence that the settlement administrator has procedures in place to protect the security of class data and adequate insurance in the event of a data breach or defalcation of funds.

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Participating class members and the named Plaintiff will release certain claims against Defendant. (See further discussion below)

ANALYSIS OF SETTLEMENT AGREEMENT

1. Does a presumption of fairness exist?

1.

Was

the settlement reached through arm's-length bargaining? Yes.

On July 23, 2025, the parties participated in a mediation presided over

by the Honorable Carl J. West (Retired) and reached a settlement. (Russell Decl., ¶4.) A fully executed copy of the Class Action

Settlement ("Settlement Agreement" or "Agreement") is attached to counsel Russell's declaration as Exhibit A and a redlined version of the LASC Model Agreement is attached as Exhibit B. (Id. at ¶4, Exs. A-B.)

2.

Were

investigation and discovery sufficient to allow counsel and the court to act intelligently? Yes.

Plaintiff's counsel represents that, prior to mediation, Plaintiff obtained, through formal discovery (i) over 115,000 pages of documents produced in response to 74 requests for production, (ii) responses and supplemental responses to 47 requests for admission and (iii) responses and supplemental responses to 50 interrogatories.

(Russell Decl., ¶2.) [Provide information about the specific documents reviewed prior to settlement.]

3.

Is

counsel experienced in similar litigation? Yes. Class

Counsel are experienced in class action litigation, including consumer class actions. (Russell Decl., ¶¶21-25.)

Provide

a sworn declaration from counsel from Qureshi Law PC demonstrating that they are experienced in consumer class action litigation.

4.

What

percentage of the class has objected? This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice Guide:

Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, ("Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.").

CONCLUSION: The settlement is entitled to a presumption of fairness.

2.

Is the settlement fair, adequate, and reasonable?

1.

Strength

of Plaintiff's case. "The most important factor is the strength of the case for plaintiff on the merits, balanced against the amount offered in settlement." (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.)

According

to Plaintiff's counsel, the maximum possible recovery under a total refund theory would be a return of \$69.95 to each class member who purchased the STU. (Russell Decl., ¶10.) Depending on the number of final class members (36,000-42,000), total recovery would range from \$2,518,200 to \$2,937,900. (Ibid.)

What

is the value of the injunctive relief obtained?

2. Risk, expense, complexity and likely

duration of further litigation. Given

the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of

maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See Weinstat v. Dentsply Intern., Inc. (2010) 180 Cal.App.4th 1213, 1226 ("Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.").)

4. Amount offered in settlement.

The non-reversionary

settlement of \$425,000, after reduction by the requested deductions, leaves \$192,847.50 to be divided among approximately 36,000 to 42,000 Class Members. The resulting payment will average \$4.59 to \$5.36. This is approximately 6.6-7.7% of the price each Class Member paid for the STU. Depending on the number of Valid Claims submitted, Class Members may receive up to \$30, which is approximately 42.9% of the price paid for the STU.

Alternatively, the gross settlement amount of \$425,000 represents 14.5-16.9% of the maximum possible recovery under a total refund theory (\$2,518,200 to \$2,937,900).

The Court finds that the monetary benefits obtained through the settlement are within the ballpark of reasonableness.

5. Extent of discovery completed and stage of the proceedings. As indicated above, the Court requests additional information about the discovery conducted prior to settlement.

6. Experience and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, is experienced in class action litigation, including consumer class actions.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object, opt-out and/or submit claim forms. This factor becomes relevant during the fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed "fair, adequate, and reasonable."

3.
Scope of the release

Effective on the date

when ILF fully funds the entire Gross Settlement Amount Plaintiff, Class Members and Class Counsel will release claims against all Released Parties as follows: (¶6)

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Release by Participating Class Members. All Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors and assigns, release Released Parties from (i) all claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Operative Complaint and/or ascertained in the course of the Action. Participating Class Members do not release any other claims based on facts occurring outside the Class Period. (¶6.2)

o The First Amended Complaint is the Operative Complaint in the Action. (¶2.1)

o The Participating Class Member Release is overbroad. The Release should not encompass "all claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Operative Complaint and/or ascertained in the course of the Action." (Settlement Agreement, ¶6.2) The Release should be limited to claims that were alleged, or reasonably could have been alleged, based on the facts and allegations in the Operative Complaint.

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Plaintiff will provide a general release and waiver pursuant to Civil Code §1542. (¶6.1)

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"Released Parties" means ILF and each of its former and present directors, officers, shareholders, owners, members, attorneys, insurers, predecessors, successors, assigns, subsidiaries and affiliates. (¶1.31)

4.
May conditional class certification be granted?

1.
Standards

A detailed analysis of the elements required

for class certification is not required, but it is advisable to review each

element when a class is being conditionally certified (*Amchem Products, Inc. v. Winsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a

different standard to determine the propriety of a settlement class as opposed to a litigation class certification.

Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk* at 1807, fn 19.)

Finally, the Court is under no "ironclad requirement" to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba* at 240.)

2.

Analysis

a.

Numerosity. The Parties have

determined that the size of the Class is between 36,000 and 42,000 members. (MPA at 17:11-12.) This element is met.

b.

Ascertainability. The

proposed class is defined above. The

class definition is "precise, objective and presently ascertainable." (*Sevidal*

v. Target Corp. (2010) 189 Cal.App.4th 905, 919.) Here, the great majority of class members

purchased the STU online from ILF for which ILF still maintains records. For

the remaining class members, identification can be achieved through a standard

claims process requiring a sworn affidavit or declaration. (MPA at 17:20-22.)

c.

Community

of interest. "The community of interest requirement

involves three factors: '(1) predominant common questions of law or fact; (2)

class representatives with claims or defenses typical of the class; and (3)

class representatives who can adequately represent the class.'" (*Linder*

v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

Discuss specific facts showing

that there are predominant common questions of law or fact in the instant action.

As to typicality, Plaintiff alleges that the factual and legal issues apply equally to Plaintiff and Class Members. Just like Plaintiff, Class Members' claims arise from the purchase of the STU and Plaintiff and all Class Members were exposed to the representations on the sales path of ILF's and third-party reseller websites and on ILF's packaging.
(MPA at 18:3-6.)

As to adequacy, Plaintiff is an adequate Class Representative because (1) he has no conflicts of interest with other Class Members, (2) understands his responsibilities as a Class Representative, and (3) has actively participated in the litigation. (Russell Decl., ¶26; see Declaration of Brinan Weeks.)

d.
Adequacy
of class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including consumer class actions.

e.
Superiority. Given
the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

5.
Is the notice proper?

1.
Content
of class notice. The proposed notice is attached to the Settlement Agreement as Exhibit A. The contents of the Notice appear to be acceptable.
It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; the proposed deductions from the gross settlement amount (attorney fees and costs, enhancement awards, and administration costs); the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the

settlement; and the date, time, and place of the final approval hearing.

Class Notice will be distributed in

English. (¶1.9) "Because the ILF website and packaging is in

English, the Parties agree that providing notice in another language is not necessary." (Russell Decl., ¶19.)

Address

the following issues in the Class notice:

1)

Correct the Class Period dates on the first page of the Notice.

2)

The following sentences may confuse recipients of the Class Notice: (1) "You don't have to do anything to participate in the proposed Settlement and be eligible for an Individual Class Payment;" and (2) "To receive an Individual Class Payment, you must timely submit a Claim Form, as described below."

(Notice, p. 1.) Ensure that the information is presented in a clear manner to notify recipients that they must submit a claim form to receive the Individual Class Payment.

3)

Throughout the Notice, recipients are informed that they will receive a payment of \$30 if they submit a Valid Claim. However, as stated in the Settlement Agreement, this amount is subject to a pro-rata reduction based on the number of Valid Claims received. The parties are unable to provide a claims rate, however, assuming a 50% claims rate and a class size of 36,000 to 42,000 recipients, an Individual Class Payment may be as little as \$9.18. In order to allow Class Members to make an informed decision about submitting a claim form or opting out, the Notice should be transparent about the possibility that Class Members may recover much less than \$30 by participating in the settlement.

4)

Remove the reference to the Individual

PAGA Payment in ¶3.2.B
of the Notice.

5)

Remove the reference to wages in ¶3.8 of the Notice: “you cannot sue, continue to sue, or be part of any other lawsuit against ILF or related entities for wages based on the Class Period facts...”

6)

The Participating Class Member release presented in ¶3.8 of the Notice should match verbatim the Participating Class Member release presented in ¶6.2 of the Settlement Agreement. Moreover, the Notice should include the definition of “Released Parties” which is set forth in ¶1.31 of the Agreement.

7)

According to the Notice, Requests for Exclusion and written Objections must include a statement under penalty of perjury that the individual purchased the STU during the Class Period. (Notice, ¶¶ 6-7.) This is not listed as one of the requirements in ¶¶8.5.1 and 8.7.2 of the Settlement Agreement. Why does the Notice request a statement under penalty of perjury?

8)

The Notice at ¶¶6 and 7 should clarify that Requests for Exclusion and written Objections may be submitted to the Administrator via email or mail, as set forth in the Settlement Agreement at ¶¶1.33, 8.5.1, and 8.7.2.

9) The

links provided in the Notice directing Class Members to the Superior Court website are invalid. (Notice, ¶¶8-9) Provide valid links.

10) Paragraphs

7-9 of the Notice direct Class Members to the Administrator's website. The Notice should provide additional instructions to assist Class Members in navigating the Administrator's website and locating documents relevant to this case.

2.

Method

of class notice.

Class Data: Not later than 15 days after the Court grants

Preliminary Approval of the Settlement, ILF will simultaneously deliver the

Class Data to the Administrator, in the form of a Microsoft Excel spreadsheet. (¶4.2)

Notice via email and publication: Using best efforts to perform as soon as

possible, and in no event later than 14 days after receiving the Class Data,

the Administrator will (a) send to all Class Members identified in the Class

Data, via electronic mail and (b) publish in a newspaper of general circulation as defined by

California Government Code §§6000, 6008 in the State of California at least

once per week for four consecutive weeks, the Class Notice substantially in the

form attached to this Agreement as Exhibit A. The first page of the Class

Notice shall prominently estimate the dollar amount of any Individual Class

Payment payable to a Class Member who submits a timely Valid Claim. (¶8.4.2)

Defendant's counsel estimates that Defendant has email addresses for

approximately 87% of transactions during the Class Period. (Johnson Decl., ¶6.)

· Indicate

the newspaper in which the Class Notice will be published. How does this publication constitute the best notice practicable under the circumstances?

· Why

have the parties not agreed to have a Banner ad posted on Defendant's website?

Not later than three [3] business days after

the Administrator's receipt of any Class Notice returned by the email provider

as undelivered, the Administrator shall re-email the Class Notice using any

alternative email address provided by ILF. If the ILF does not provide a

forwarding address, the Administrator shall conduct a Class Member Email

Search, and re-email the Class Notice to the most current email address

obtained. The Administrator has no obligation to make further attempts to

locate or send Class Notice to Class Members whose Class Notice is returned by

the USPS a second time. (¶8.4.3)

Remove

the reference to the USPS.

If the Administrator, ILF or Class Counsel is contacted by or otherwise discovers any persons who believe they should have been included in the Class Data and should have received Class Notice, the Parties will expeditiously meet and confer in person or by telephone, and in good faith, in an effort to agree on whether to include them as Class Members. If the Parties agree, such persons will be Class Members entitled to the same rights as other Class Members, and the Administrator will send, via email or overnight delivery, a Class Notice requiring them to exercise options under this Agreement not later than 14 days after receipt of Class Notice or the last date of publication of the Class Notice, or the deadline dates in the Class Notice, whichever ever are later. (§8.4.5)

Notice of changes

to the date, time, and location of the Final Approval Hearing and the Final Judgment will be posted on the Settlement Administrator's website. (§8.8.1)

3.

Cost

of class notice. As indicated above, settlement administration costs are estimated not to exceed \$45,500. Prior to the time of the final fairness hearing, the administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

6. Attorney fees and costs

CRC rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately, the award of attorney

fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v.

Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and

responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable.” (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to \$141,652.50 (33.33% of GSA) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class

Counsel should also be prepared to justify the costs sought (capped at \$35,000) by detailing how they were incurred.

7.

Incentive Awards

The Settlement Agreement provides for enhancement awards of up to \$10,000 to the named Plaintiff. In connection with the final fairness hearing, the named Plaintiff must submit a declaration attesting to why he should be entitled to an enhancement award in the proposed amount. The named Plaintiffs must explain why he “should be compensated for the expense or risk [he] has incurred in conferring a benefit on other members of the class.” (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’ Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiff, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit’” (Id. at 806-807, italics and ellipsis in original.) The Court will decide the issue of the enhancement awards at the time of final approval.

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LOS

ANGELES SUPERIOR COURT, COMPLEX CIVIL DEPARTMENT

CHECKLIST

FOR

PRELIMINARY

APPROVAL OF CLASS ACTION SETTLEMENT

Department:

SSC-11

RE:

Brinan Weeks v. Interactive Life

Forms, LLC (Case No.: 22STCV03531)

In reviewing your motion
for preliminary approval of class action settlement, the Court orders further
briefing on the items checked below.

The additional briefing

shall be due by _____, 2026. Note: if briefing is not filed by said date
the hearing will be placed off calendar. Your hearing date set for _____, is
continued to the first available date of
_____ at _____ in Department 11.

This checklist

provides direction on what information and argument the court requires to grant
a motion for preliminary approval of a class action settlement. All parties are urged to carefully review the
checklist and fully comply with each item that applies to the case in order
that the motion may be promptly ruled upon. The content of the motion should follow the
same order as this checklist, as that is how the judge and research attorney
review the motion.

You should also consider using the form wage and hour
settlement agreements now available on the court's website at <https://www.lacourt.org/forms/all> – "Civil Forms" section.
With input and unanimous consensus from an Ad Hoc Wage and Hour
Committee (chaired by Judge Hogue and Judge Cunningham and comprised of 8
plaintiff's attorneys and 8 defense attorneys), the court has posted: (1) a form class action settlement
agreement, (2) a form class action/PAGA settlement
agreement, (3) and a form PAGA settlement agreement. Using these
forms should cut down on attorney negotiation time and reduce the lag time

between a successful mediation and execution of a long form agreement. Filing a motion that is based on a form agreement and includes a redlined copy identifying modifications will also expedite the court's review process and help reduce the current backlog on hearings. These forms are encouraged but entirely optional.

I.

MOVING PAPERS (Motion and Declarations)

All facts

submitted for the court to consider must be provided in the form of a declaration or other admissible evidence. The court will not consider facts stated only in the motion.

A. Introductory Information

¿ Summary of the litigation, including identity of the parties, brief procedural history, claims asserted, and general factual basis for the claims.

B. Dunk/Kullar Analysis

¿

Summary of the case, including the legal and factual basis for each claim. (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 133 (Kullar); Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles (2010) 186 Cal.App.4th 399, 409.)

¿ Summary

of the investigation and discovery conducted, including the specific documents reviewed prior to agreeing to settle the case. (Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1802, as modified Sept. 30, 1996 (Dunk).) If counsel's analysis was informed by a data sample, show that the sample is statistically reliable.

.

Plaintiff's

counsel represents that, prior to mediation, Plaintiff obtained, through formal discovery (i) over 115,000 pages of documents produced in response to 74 requests for production, (ii) responses and supplemental responses to 47

requests for admission, and (iii) responses and supplemental responses to 50 interrogatories. (Russell Decl.,

¶2.) Provide

information about the specific documents reviewed prior to settlement.

¿ Summary of settlement

negotiations, including when the settlement was reached, and

whether the

parties were assisted by a mediator. (Dunk, *supra*, 48 Cal.App.4th at p. 1802.)

¿

A summary of the risks, expenses, complexity, and duration of further litigation if the

settlement is not

approved.

¿

A summary of the risks of achieving and maintaining class action status.

¿

Specific information sufficient for the court to make an independent determination that the consideration being received for the release of class members' claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation. (Kullar, *supra*, 168 Cal.App.4th at 129.) This discussion should specify the maximum realistic recovery of each claim asserted in the operative complaint, defenses asserted by Defendant, and any other relevant factors justifying the amount offered in settlement. If the settlement is predicated on a payment plan or is predicated on defendant's financial situation, admissible evidence of Defendant's financial situation should be provided, including appropriate financial documents such as a balance sheet, statement of cash flows, profit and loss statement, and the like.

¿

If approval of the settlement of class claims is requested together with approval of non-class claims (such as claims under the Labor Code's Private Attorney General Act (PAGA)) discuss why the amount allocated to the non-class claims is fair to those affected. See *Moniz v. Adecco USA, Inc.* (2021)

72 Cal.App.5th 56, 77 (Moniz).

C. Class

Certification

¿

Numerosity: Total number of members in the settlement class and number of members in each sub-class (if applicable).

¿

Ascertainability: The manner by which members of the class will be identified and when. (Noel v. Thrifty Payless (2019) 7 Cal.5th 955.)

¿

Community of Interest: Discuss specific facts showing that the proposed class representatives have claims or defenses typical of the class and can adequately represent the class. (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

· Discuss specific

facts showing that there are predominant common questions of law or fact in the instant action.

¿

Adequacy:

¿ Class

Counsel: A summary of Class Counsels' experience and a listing of all prior cases in which each named Class Counsel has been approved by a court to act as lead or co-counsel. (See Dunk, supra, 48 Cal.App.4th at p. 1802.)

· Provide a sworn declaration from counsel from Qureshi Law PC demonstrating that they are experienced in consumer class action litigation.

¿

Class Representative(s): Provide evidence that each proposed class representative has agreed to act as same and understands his or her responsibilities. (See Soderstedt v.

CBIZ Southern California, LLC (2011) 197 Cal.App.4th 133, 155-156; Jones v. Farmers Ins. Exchange (2013) 221 Cal.App.4th 986, 998-999).

D. Claim

Requirement (if applicable)

¿ If

class members are required to submit a claim to receive compensation, explain why a claim form is necessary and either 1) provide an estimate of the anticipated claims rate or 2) provide an explanation why a claims rate cannot be provided.

¿ Provide

a detailed explanation why a "claims made" settlement is appropriate in this case.

¿ Indicate

what actions class counsel will take to encourage claim submission.

¿ Explain

why the claims process is not so burdensome that relief would be inaccessible to class members (if applicable).

¿ "Valid

Claim" means a timely and properly completed claim form that is signed by a Participating Class Member under penalty of perjury and otherwise satisfies the requirements of this Agreement.

(Settlement, Agreement, ¶1.34)

.

What is the deadline for submitting claim forms?

.

What happens if a claim form is not properly completed? Will the Class Member have an opportunity to make a correction?

¿ Submit a copy of the proposed Claim Form for the Court's review. Will the Claim Form be emailed along with the Class Notice? Will it be published along with the Class Notice?

E. Miscellaneous

¿

If appropriate, explain why the settlement includes terms that are outside the scope of the operative complaint. (Trotsky v. Los Angeles Fed. Savings & Loan Assn. (1975) 48 Cal.App.3d 134, 148.) If approval of settlement of a PAGA claim is requested provide a copy of Plaintiff's notice letter to the LWDA.

¿

If notice will be given in English only, explain why this is sufficient.

¿

A statement of any affirmative obligations to be undertaken by the class member or class counsel and the reason for such obligations.

¿

Provide information regarding any fee splitting agreement and whether the client has given written approval. (Mark v. Spencer (2008) 166 Cal.App.4th 219; Rules Prof. Conduct, rule 1.5.1; Cal. Rules of Court, rule 3.769.)

¿ Any

agreement that has injunctive relief against a class representative generally is not appropriate in a class action case. Provide the authority and factual reasons why this case is an exception. See Moniz, supra, 72 Cal.App.5th at 84. ("[T]he preclusive effect of a prior judgment is determined by the court in which it is asserted, not the court that rendered it." (Fireside Bank Cases (2010) 187 Cal.App.4th 1120, 1131 [115 Cal. Rptr. 3d 80].))

¿

Explanation as to why any class representative enhancement is reasonable, including what the class representative did beyond the expected services of any class representative. (Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles (2010) 186 Cal.App.4th 399, 412; Radcliffe v. Experian Information Solutions Inc. (9th Cir. 2013) 715 F.3d 1157, 1165.) In PAGA settlements explanation should be provided as to why an incentive award is appropriate.

· Plaintiff's Class

Representative payment should not exceed \$7,500, absent substantial justification. Provide justification for a payment of \$10,000.

SETTLEMENT AGREEMENT

The settlement
agreement should address the following:

A. The Basics

¿ Class
definition. If a PAGA representative action is settled with a proposed Class
Settlement consider whether there should be separate definitions for Class
Members and Aggrieved Employees.

¿
Class and Release Period: If the class and release periods extend beyond the
preliminary approval explain why this is appropriate.

B. Release of Claims

¿ Scope:
The scope of any release given by class members must be defined with precision
and clarity. Any released claims not presented directly in the operative
complaint should be based on the facts alleged in the operative complaint. (See
Amaro v. Anaheim Arena Mgmt. (2021) 69 Cal. App. 5th 521, 537 and FN. 5;
Uribe v. Crown Building Maintenance Co. 70 Cal. App. 5th 986, 1005.)

· The Participating Class Member Release is overbroad. The Release should not encompass “all claims
that were alleged, or reasonably could have been alleged, based on the Class
Period facts stated in the Operative Complaint and/or ascertained in the
course of the Action.” (Settlement
Agreement, ¶6.2) The Release should be
limited to claims that were alleged, or reasonably could have been alleged,
based on the facts and allegations in the Operative Complaint.

¿
Class cases which include a PAGA claim should have a
separate release for the PAGA claim tied to the facts alleged in the notice
given to the LWDA. Id.

¿

If PAGA and Class Settlement: The Release should provide an explanation that released claims include all PAGA claims that could have been premised on the facts alleged in the Plaintiff's Notice and aggrieved employees will release PAGA claims even if class members request exclusion from the class. See *Robinson v. Southern Counties Oil Co.* (2020) 53 Cal.App.5th 476.

¿

A Civil Code section 1542 waiver is generally not appropriate in a class action case as to the putative class members (if applicable). Provide the authority and factual reasons why this case is an exception. (*Israel-Curley v. California Fair Plan* (2005) 126 Cal.App.4th 123, 129; *Salehi v. Surfside III Condominium Owners' Assn.* (2011) 200 Cal.App.4th 1146, 1159–1161.)

¿ Release

Effective Date: Indicate the point in time at which the release will be deemed effective as to the absent class members. If the release will be effective before settlement funds are paid, explain why this is in the best interest of the class.

¿

Class Data: If there are confidentiality provisions, explain why they are in the best interest of the Class and whether they will impede Class Counsel's ability to discharge fiduciary duties.

C. Monetary Terms of Settlement

¿

Settlement Amount: Indicate the amount of the gross settlement, how and when the settlement will be paid, and information regarding payment plan, if any. If a class claim is being settled with a PAGA claim the amounts allocated should be separated and paid only to the aggrieved employees.

¿

Deductions from the settlement fund: Indicate the amounts to be deducted from the gross settlement for attorneys' fees and costs, plaintiff incentive awards, administrative costs, PAGA payment and allocation of award to LWDA and the parties, and any other existing deductions.

¿

If there are subclasses, explain why the monetary distribution is fair to each subclass. Ensure there is a class representative who fits the definition of each subclass.

¿

Information about how attorney fees will be calculated. The percentage method, with or without a lodestar cross-check, may be used in common fund cases. (*Laffitte v. Robert Half Internat., Inc.* (2016) 1 Cal.5th 480, 503.) In other cases, counsel should fully brief how the fees are calculated.

¿

If wages are involved, explain how Defendant's share of taxes will be paid.

¿

Whether, and under what circumstances, amounts may revert to Defendant, and a justification for such reversion (if applicable). (*Cundiff v. Verizon California, Inc.* (2008) 167 Cal.App.4th 718, 728–729.)

¿ Payment

Formula: Amount and manner of distribution of the compensation to each class member, including the estimated amount each class member will receive and the timeline on which payments will be issued.

¿

Tax allocation of settlement payments.

¿ Nature

of injunctive relief (if any), and valuation of such relief.

· What is the value of the injunctive relief obtained?

D. Notice Administration

The following issues regarding notice administration should be addressed in the settlement

agreement. A copy
of the proposed notice must be attached to the settlement agreement as an
exhibit.

¿
Indicate the administrator for the settlement and why the bid for
administration is fair.

¿ Provide
the qualifications and experience of the Administrator, including evidence that
the settlement administrator has procedures in place to protect the security of
class data and adequate insurance in the event of a data breach or defalcation
of funds.

¿
Indicate how/when the administrator will receive the class list.

¿
Indicate whether the list will be updated by the administrator prior to the
initial mailing by use of National Change of Address Registry.

¿
Provide the deadline for the initial issuance of notice to class members.

¿ Ensure
the content of the notice complies with California Rules of Court, rule
3.766(d). In wage and hour cases the notice should indicate the specific amount
the class member will receive and how that amount was calculated. A separate
breakdown for PAGA payments should be provided. The terms of the release(s)
should be reflected in the Notice.

Address the following issues in the Class Notice:

1)
Correct the Class Period dates on the first page of
the Notice.

2)
The following sentences may confuse recipients of the

Class Notice: (1) "You don't have to do anything to participate in the proposed Settlement and be eligible for an Individual Class Payment;" and (2) "To receive an Individual Class Payment, you must timely submit a Claim Form, as described below." (Notice, p. 1.) Ensure that the information is presented in a clear manner to notify recipients that they must submit a claim form to receive the Individual Class Payment.

3)

Throughout the Notice, recipients are informed that they will receive a payment of \$30 if they submit a Valid Claim. However, as stated in the Settlement Agreement, this amount is subject to a pro-rata reduction based on the number of Valid Claims received. The parties are unable to provide a claims rate, however, assuming a 50% claims rate and a class size of 36,000 to 42,000 recipients, an Individual Class Payment may be as little as \$9.18. In order to allow Class Members to make an informed decision about submitting a claim form or opting out, the Notice should be transparent about the possibility that Class Members may recover much less than \$30 by participating in the settlement.

4)

Remove the reference to the Individual PAGA Payment in ¶3.2.B of the Notice.

5)

Remove the reference to wages in ¶3.8 of the Notice:
"you cannot sue, continue to sue, or be part of any other lawsuit against ILF or related entities for wages based on the Class Period facts..."

6)

The Participating Class Member release presented in ¶3.8 of the Notice should match verbatim the Participating Class Member release presented in ¶6.2 of the Settlement Agreement.
Moreover, the Notice should include the definition of "Released Parties" which is set forth in ¶1.31 of the Agreement.

7)

According to the Notice, Requests for Exclusion and written Objections must include a statement under penalty of perjury that the individual purchased the STU during the Class Period. (Notice, ¶¶6-7.) This is not listed as one of the requirements in ¶¶8.5.1 and 8.7.2 of the Settlement Agreement. Why does the Notice request a statement under

penalty of perjury?

8)

The Notice at ¶¶6 and 7 should clarify that Requests for Exclusion and written Objections may be submitted to the Administrator via email or mail, as set forth in the Settlement Agreement at ¶¶1.33, 8.5.1, and 8.7.2.

9)

The links provided in the Notice directing Class Members to the Superior Court website are invalid. (Notice, ¶¶8-9) Provide valid links.

10)

Paragraphs 7-9 of the Notice direct Class Members to the Settlement Administrator's website.

The Notice should provide additional instructions to assist Class Members in navigating the Administrator's website and locating documents relevant to the instant case.

¿ Ensure

the notice accurately reflects the Court's current social distancing procedures for attendance at hearings and review of court files. (Counsel should check the Court website for most current information.)

¿

Indicate how and when payments will be processed.

¿ Indicate

how notices returned to the administrator as undeliverable will be handled.

¿ Explain

how re-mailed notices, if any, will be handled. Will class members who receive re-mailed notices be given an extended deadline to respond (i.e., opt-out, object, and dispute workweeks)?

¿

Explain how notice of any change of the date or location of the hearing will be given.

¿

Indicate whether there will be a settlement website. If so, provide the URL.

¿ If

publication notice will be given indicate the timing, locations, and manner by which publication notice will be disseminated.

.

According to the

Settlement Agreement, the Administrator will send the Class Notice via electronic mail and publish it in a newspaper of general circulation as defined by California Government Code §§6000, 6008 in the State of California at least once per week for four consecutive weeks.

o

Indicate the newspaper

in which the Class Notice will be published.

How does this publication constitute the best notice practicable under the circumstances?

o

Why have the parties

not agreed to have a Banner ad posted on Defendant's website?

¿

Explain how notice of final judgment will be given to the class. (Cal. Rules of Court, rule 3.771(b)) (e.g. Posted on claims administrator's website.)

E. Responses to Notice

¿

Description of the procedures for submitting written objections, requests for exclusion, claim forms (if applicable) and disputes to estimated payments.

¿

Indicate the deadline to submit objections, requests for exclusion, claim forms (if applicable), and/or disputes to workweeks. Confirm the deadline is reasonable and that class members who receive re-mailed notices will be given an extension.

· Ensure that the

Response Deadline is consistent throughout the Settlement Agreement and moving papers. Currently, it is stated as 45 days in ¶1.33 of the Agreement and 60 days in ¶¶8.4.4, 8.5.1, 8.7.2 of the Agreement, ¶3.5 of the Notice, and ¶12 of the Proposed Order.

¿

The objection procedure should be the same as the opt-out procedure, with the only requirement being that objections be mailed to the settlement administrator and not filed with the court.

¿

Do not include language indicating that class members may only be heard at final approval if they have complied with all objection procedures or that they must use specific language to request exclusion, or, if a specific procedure is sought, explain why it is necessary. In general, the court will hear from any class member who attends the final approval hearing and asks to speak regarding his or her objection.

F. Cy Pres Distribution

¿

Indicate the length of time from issuance for which settlement checks will remain valid.

¿

Identify the fund to which uncashed checks will be directed and detail the steps that will be taken to ensure compliance with Code of Civil Procedure section 384. The Court's Omnibus Trailer Bill of 2018 replaced the language of the prior statutory distribution scheme under Code of Civil Procedure, section 384 with a requirement that the Court re-open judgments following the final distribution of funds to include the cy pres in the judgment and to include the unclaimed amount, plus an unspecified amount of interest. Such information should be actively contemplated/provided for within the current terms of the settlement.

.

Detail the steps that will be taken to ensure compliance with Code of Civil Procedure section 384.

.

According to ¶4.4 of the Settlement Agreement, the Administrator will disburse all payments, including the Cy Pres Recipient payment within 14 days after Defendant funds the Gross Settlement Amount.

What funds are being distributed to the Cy Pres Recipient if uncashed checks are voided 180 days after the date of mailing?

.

Moreover, why aren't residual funds distributed to Class Members who submit a Valid Claim? For example, if the number of Valid Claims is such that the Net Settlement Amount divided by the number of Valid Claims is greater than \$30, why don't claimants receive more than \$30, given that they paid \$69.95 for the STU?

¿ Explain

why the cy pres distribution fulfills the purposes of the lawsuit or is otherwise appropriate. (State of California v. Levi Strauss & Co. (1986) 41 Cal.3d 460, 472; In re Microsoft I-V Cases (2006) 135 Cal.App.4th 706, 722; Nachshin v. AOL, Inc. (9th Cir. 2011) 663 F.3d 1034, 1038–1041; Dennis v. Kellogg Co. (9th Cir. 2012) 697 F.3d 858, 865; Code Civ. Proc., § 384.)

¿

Provide declarations disclosing the interest or involvement (or lack thereof) by any counsel or party in the governance or work of the cy pres recipient. Alternatively, direct all uncashed checks to the state controller's office.

· Provide

declarations from Plaintiff, Plaintiff's counsel, and Defendant disclosing interest or involvement (or lack thereof) in the governance or work of the cy pres recipient. Alternatively, direct all uncashed checks to the State Controller's Office.

G. MISCELLANEOUS

¿ Assure the Settlement Agreement and Notice

are consistent and that the Settlement Agreement has been signed by all parties and counsel. Carefully proofread both.

.

Review the Agreement and Notice and ensure that there

are no typographical errors. For example:

- o Paragraph 13.1 of the Agreement should state “If, for any reason the Court does not grant Preliminary Approval...”

- o Paragraph 3.1 should not refer to payroll taxes as this is not an employment action.

- o Paragraph 8.4.3 should not refer to the USPS, as the Notice will be distributed via electronic mail and publication.

¿

The Settlement Agreement and paperwork derivative thereof should not suggest that the end result of court approval will be dismissal of the Action with prejudice or entry of a Final Judgment and Order dismissing with prejudice all claims. See California Rules of Court, rule 3.769(h).

III. EXHIBITS TO THE MOTION

¿

Provide proof of submission of the proposed settlement agreement to the LWDA. (Lab. Code, § 2699, subd. (l)(2).)

¿ Include

a proposed Judgment, which should not include a dismissal or any findings not contained in the Final Approval Order. (Cal. Rules of Court, rule 3.769(h).)

· The

Proposed Order Implementation Schedule should state that the “Deadline for Settlement Administrator to E-Mail and Publish Notice to Class Members” is within 29 days of the Preliminary Approval, not 28 days. (Proposed Order, ¶12(b))

¿

All exhibits should be bookmarked, as set forth in the Presiding Judge's First Amended General Order of May 3, 2019 re: Electronic Filing, available on the Court website.

If the Settlement Agreement is modified pursuant to this checklist, please submit both a red-lined copy showing changes made as well as

a final version signed by all parties. Do not submit an addendum in lieu of a full amended settlement agreement including all operative settlement terms.

Modify notice to match any alterations to the Settlement Agreement.

Date: July 2, 2026

JUDICIAL
OFFICER